

26CMCV00710 26CMCV00710

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 26CMCV00710 Hearing Date: August 31, 2026 Dept: P

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. P

KENNETH
MELVIN JOSEPH II,

Plaintiff

Case No.:

26CMCV00710

vs.

[Tentative]
RULING RE:

DEMURRER
TO PLAINTIFF'S FIRST AMENDED COMPLAINT

ATLAS

TITLE COMPANY; KEVIN LÊ; ALEXIS EKAIREB ESQ.; and DOES 1-50, inclusive,

Defendants.

Hearing

Date: August 31, 2026

Department

P, Judge David K. Reinert

Demurrer

to Plaintiff's First Amended Complaint

Moving

Party: Defendants

Atlas Title Company and Kevin Lê

Responding Party: None

RULING

The court

considered the moving papers. Moving

Defendants' Demurrer to Plaintiff's FAC is SUSTAINED in its entirety with leave to amend.

PROCEDURAL BACKGROUND

On April 17, 2026, Plaintiff Kenneth Melvin Joseph II ("Plaintiff") filed a complaint against Defendants Atlas Title Company ("Atlas"), Kevin Lê ("Lê"), Alexis Ekaireb, Esq. ("Ekaireb"), and DOES 1 through 50, inclusive, alleging four causes of action for: (1) Invasion of Privacy; (2) Breach of Confidentiality; (3) Negligence; and (4) Violation of Financial Privacy – Gramm-Leach Bliley Act.

On June 11, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants Ekaireb, Atlas, Lê, and DOES 1 through 50, inclusive, alleging three causes of action for: (1) Invasion of Privacy; (2) Breach of Confidentiality; and (3) Negligence.

On July 10, 2026, Defendants Atlas and Lê (collectively, "Moving Defendants") filed the instant Demurrer. On August 24, 2026, Moving Defendants filed a Notice of Non-Opposition.

On July 10, 2026, Moving Defendants filed a Notice of Related Case, identifying Case No. 24TRCV02009, Amur Equipment Finance, Inc. v. 1 K Transportation LLC, et al. as related to the instant case.

FACTUAL BACKGROUND

Plaintiff

alleges that he engaged Atlas "in connection with a refinance transaction concerning Plaintiff's residence," through which Defendants obtained access to Plaintiff's personal and financial information. (FAC, ¶¶ 4-5.) Plaintiff alleges that he did not authorize Atlas, Lê, or any representative associated with Plaintiff's refinancing transaction to disclose information regarding the transaction to third parties. (FAC, ¶ 7.) Plaintiff alleges that Ekaireb represented parties with interests adverse to Plaintiff's in separate litigation proceedings. (FAC, ¶ 8.) Next, Plaintiff alleges that on March 24, 2026, Lê, an employee of Atlas, communicated with Ekaireb regarding Plaintiff's refinance transaction, after which Ekaireb used information obtained from Atlas in support of an application for a writ of attachment and temporary protective order. (FAC, ¶¶ 3, 9-13.) Plaintiff alleges that as a result of Defendants' conduct, he has incurred damages including invasion of privacy, emotional distress, litigation-related expenses, interference with financial affairs, and exposure of confidential financial information. (FAC, ¶ 20.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khouri v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.);

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When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at 747.)¿On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)¿

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Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)¿

DISCUSSION

Moving Party's Argument

Moving Defendants demur to each of the three causes of action alleged by Plaintiff. First, Moving Defendants argue that Plaintiff's Invasion of Privacy cause of action fails because Plaintiff has not alleged facts showing what specific, protected privacy interest he had, facts showing that Plaintiff had a reasonable expectation of privacy under the circumstances, or facts establishing a serious invasion of Plaintiff's privacy interest. Moving Defendants argue that Plaintiff has not alleged any facts showing that he had any relationship with either of Moving Defendants, and thus all three of Plaintiff's causes of action fail. Moving Defendants also argue that Plaintiff has not alleged facts showing that Plaintiff suffered an injury as the result

of Moving Defendants' disclosure of any allegedly confidential communication.

Request for Judicial Notice

Moving Defendants request that the court take judicial notice of the following records: (1) a certified copy of the complaint filed in Amur Equipment Finance, Inc. v. 1 K Transportation LLC, et al.; (2) a certified copy of the Abstract of Judgment recorded on November 4, 2025 in the Los Angeles County Recorder's Office; (3) a certified copy of the Minute Order dated February 24, 2026 granting the Motion to Set Aside/Vacate Default and Default Judgment filed in Amur Equipment Finance, Inc. v. 1 K Transportation LLC, et al.; (4) a certified copy of the Release of Abstract of Judgment Lien recorded on April 6, 2026 in the Los Angeles County Recorder's Office; (5) a certified copy of the Temporary Protective Order, Right to Attach Order and Writ of Attachment filed in Amur Equipment Finance, Inc. v. 1 K Transportation LLC, et al.; and (6) a copy of Plaintiff's complaint filed in this action.

The court may take judicial notice of court records pursuant to Evidence Code Section 452(d). Therefore, Moving Defendants' request for judicial notice is GRANTED in its entirety.

Merits of the Motion

A.

Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. Section 430.41(a).)

Here, Moving Defendants' counsel declares that on July 6, 2026, Moving Defendants' counsel emailed Plaintiff requesting to meet telephonically. (Holt Decl., ¶ 3.) Plaintiff responded by email, informing Moving Defendants' counsel that he was available to meet and confer on July 8, 2026. (Holt Decl., ¶ 3.) However, Moving Defendants' counsel declares that at the time of the scheduled call, Plaintiff stated that he would call back in approximately an hour, yet Moving

Defendants' counsel did not receive a call back from Plaintiff. (Holt Decl., ¶ 4.)

Because the parties have not met in person, by telephone, or by video conference, the court finds that the meet and confer requirements have not been met. However, the court will still discuss the merits of Moving Defendants' demurrer because a failure to comply with the meet and confer requirements alone does not defeat a demurrer. (Code Civ. Proc. Section 430.41(a)(4).)

B.

Sufficiency of the Pleadings: First and Second Causes
of Action for Invasion of Privacy and Breach of Confidentiality

"An

actionable claim [for invasion of privacy] requires three essential elements:

(1) the claimant must possess a legally protected privacy interest; (2) the claimant's expectation of privacy must be objectively reasonable; and (3) the invasion of privacy complained of must be serious in both its nature and scope." (County of Los Angeles v. Los

Angeles County Employee Relations Commission (2013) 56 Cal.4th 905, 926, citations omitted.) "An otherwise actionable invasion of privacy may be legally justified if it substantively furthers one or more legitimate competing interests. Conversely, the invasion may be unjustified if the claimant can point to 'feasible and effective alternatives' with 'a lesser impact on privacy interests.'" (Ibid., citation omitted.)

Moving Defendants argue that all three of Plaintiff's causes of action fail because Plaintiff has not alleged any facts to establish the existence of any relationship between Plaintiff and Moving Defendants.

Here, Plaintiff alleges that he "engaged Atlas Title Company in connection with a refinance transaction concerning Plaintiff's residence," and "[t]hrough that business relationship, Defendants obtained access to Plaintiff's nonpublic personal and financial information, including information regarding Plaintiff's refinance transaction, anticipated closing date, funding status, and refinance proceeds." (FAC, ¶¶ 4-5.) In support of Plaintiff's first cause of action, Plaintiff alleges that "Defendants intentionally and/or negligently disclosed Plaintiff's confidential financial information to persons not authorized to receive such information." (FAC, ¶ 23.) Similarly, within

Plaintiff's second cause of action, Plaintiff alleges that "Defendants owed Plaintiff a duty to maintain the confidentiality of [Plaintiff's financial information]," and "Defendants breached that duty by disclosing refinance information to persons adverse to Plaintiff and unrelated to the refinance transaction." (FAC, ¶¶ 28-29.)

The court finds that Plaintiff fails to distinguish which conduct is attributable to which particular Defendant, such that it cannot be determined which Defendant allegedly disclosed what specific information concerning Plaintiff's finances. The court finds that the allegations of Plaintiff's first and second causes of action are overly vague, such that Defendants have not been placed on notice of the exact allegations against them. Further, the court finds that Plaintiff's allegations are insufficient to show that Plaintiff suffered a serious invasion of privacy, because Plaintiff has not specified what financial information was disclosed by which Defendant, instead repeatedly alleging that "refinance information" was disclosed by Defendants, including the "existence of the refinance transaction, the status of the transaction, anticipated closing dates, and related financial information." (FAC, ¶¶ 10, 33.) Because Plaintiff's allegations regarding the content of the information disclosed and the role of each Defendant are vague, the court finds that Plaintiff has not sufficiently alleged that he suffered a serious invasion of privacy in both nature and scope. (County of Los Angeles, *supra*, 56 Cal.4th at 926.)

Accordingly,
Moving Defendants' Demurrer to Plaintiff's first and second causes of action is
SUSTAINED.

C.

Third Cause of Action: Negligence

In order
to state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Moving Defendants argue that Plaintiff's third cause of action fails because Plaintiff's allegations are conclusory and fail to allege facts showing that Plaintiff had a relationship with Moving Defendants that would give rise to a duty owed by Moving Defendants or that Plaintiff suffered harm as a result

of the alleged communications between Ekaireb and LÊ.

Here, Plaintiff alleges that “Defendants owed Plaintiff a duty to exercise reasonable care in safeguarding Plaintiff’s nonpublic personal and financial information,” and “Defendants breached that duty by disclosing Plaintiff’s refinance information to opposing counsel without authorization.” (FAC, ¶¶ 32-33.)

Again, the court finds that Plaintiff has failed to specify which conduct is attributable to which particular Defendant, such that the court cannot reasonably determine which allegations are against them. As a result, Plaintiff has not sufficiently alleged that Moving Defendants owed Plaintiff a duty, because it is not clear from Plaintiff’s third cause of action what Moving Defendants’ roles were.

Accordingly, Moving Defendants’ Demurrer to Plaintiff’s third cause of action is SUSTAINED.

D.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The court finds that it is reasonably possible for Plaintiff to amend the FAC by adding factual allegations to clarify the role of each individual Defendant and the nature of the information allegedly disclosed by each.

Therefore, the court GRANTS Plaintiff leave to amend his first, second, and third causes of action.

CONCLUSION

Based on the foregoing, Moving Defendants’ Demurrer to Plaintiff’s FAC is SUSTAINED in its entirety with leave to amend.

Plaintiff is to file and serve any amended pleading within 30 days. Moving party is ordered to give notice of ruling.